

26STCP02332 26STCP02332

County: los-angeles

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Case Number: 26STCP02332 Hearing Date: September 1, 2026 Dept: 509

Miod and Company, LLP v. Cameron Lewis

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Petitioner Miod and Company, LLP

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioner Miod and Company, LLP (Petitioner) seeks to compel arbitration of a fee dispute against respondent Cameron Lewis (Respondent) arising from forensic accounting services provided during a prior family law action.

Petitioner moves to compel the dispute to arbitration. Respondent did not file an opposition.

TENTATIVE RULING:

Petitioner's Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

A Status Review/OSC re: Dismissal is set for September 2, 2027, at 8:30 a.m.

Petitioner is ordered to give notice.

DISCUSSION:

Motion to Compel Arbitration

I. Legal Standard

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . ." (Code Civ. Pro. §1281.4.)

II. Analysis

California has a strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes. "Even so, parties can only be compelled to arbitrate when they have agreed to do so." (Avila v. S. California Specialty Care, Inc. (2018) 20 Cal. App. 5th 835, 843.) "The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement." (Ibid.)

An arbitration agreement is a contractual agreement. "General contract law principles include that '[t]he basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense." [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412–13.)

A. Existence of An Arbitration Agreement

Petitioner has the initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 165.) "[I]t is not necessary to follow the normal procedures of document authentication." (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal. App. 4th 215, 218.)

The Verified Petition contains the Agreement between the parties as Exhibit A. In relevant part, the Agreement provides:

All claims or disputes relating to the determination of the payment of fees under this Agreement shall be settled by binding arbitration administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules, and judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof. This applies to disputes with claim amounts over \$5,000. Hearings shall take place in Los Angeles, California.

(Verified Petition, Exh. A at p. 6.)

Petitioner has therefore met its initial burden to demonstrate an arbitration provision applicable to this current action.

This switches the burden to Respondent, who “bears the burden of producing evidence to challenge the authenticity of the agreement.” (Gamboa, supra, 72 Cal.App.5th at p. 165.) Respondent can do this in “several ways,” including by “declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

However, by failing to oppose, Respondent does not dispute the existence of the arbitration provision or that the arbitration provision generally covers the dispute here.

Accordingly, Petitioner’s Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

B. Appointment of an Arbitrator

As a final matter, Petitioner also seeks to appoint an arbitrator to preside over the arbitration proceeding.

However, the Agreement states “[a]ll claims or disputes relating to the determination of the payment of fees under this Agreement shall be settled by binding arbitration administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules.” (Verified Petition, Exh. A, at p. 6, emphasis added.) The Commercial Arbitration Rules have a procedure for determining the arbitrator absent an agreement between the parties. (See e.g. Commercial Arbitration Rules and Mediation Procedures, Rule R-13, [Providing the method of appointment when the parties have not appointed an arbitrator and have not provided any other method of appointment.]) Therefore, the Court declines to appoint an arbitrator as this procedure has been contractually delegated to the American Arbitration Association.

IT IS SO ORDERED.

Dated: September 2, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Respondent was personally served on July 14, 2026, at 7:48 am at his residence 374 Palos Verdes Blvd Apt B Redondo Beach, CA 90277. (7/28/26 Proof of Service.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.